

CS18 - Non-Financial – Citizenship

Statute: Sections 1903(v)(4) and (5), 2105(c)(9), 2107(e)(1)(Q) and (R) of the Social Security Act (the Act); 8 U.S.C. sections 1611, 1613 and 1641

Regulations: 42 CFR 435.956, 457.320(b)(6), (c) and (d) and 457.380(b)

INTRODUCTION

To be completed by states with a separate Children's Health Insurance Program (CHIP). In state plan page CS18, the state provides information regarding its citizenship rules and provision of CHIP to citizens and nationals of the United States (U.S.) and to certain noncitizens.

BACKGROUND

Working Families Tax Cut (WFTC) Legislation and the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (PRWORA)

Since the inception of CHIP, separate programs have been required to provide CHIP to citizens and nationals of the U.S. and certain noncitizens who meet all other CHIP eligibility requirements under the state plan. Title IV of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (PRWORA) (P.L. 104-193), as amended, established a statutory framework regarding the eligibility of noncitizens for Medicaid and CHIP benefits, as well as for other federal means-tested public benefits. Under PRWORA, certain "qualified aliens," also referred to in CMS regulations and guidance as "qualified noncitizens," are eligible for CHIP benefits if they meet all other eligibility requirements in the state (e.g., state residency and income limits).

State CHIP programs are required to provide CHIP coverage to otherwise eligible residents of the United States who are citizens or nationals of the United States or qualified non-citizens as described in section 431 of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U. S. C. section 1641).

Effective January 1, 2010, section 2105(c) of the Act was amended to apply to separate CHIP programs, the same requirements as in Medicaid with respect to required verification of citizenship or nationality, for individuals who have declared themselves to be U. S. citizens and who are required to verify their citizenship status. In a January 22, 2013 notice of proposed rulemaking (78 FR 4594), CMS proposed revisions to citizenship regulations. The revised 42 CFR 457.320 adds a requirement that citizenship and immigration verification must be done in accordance with revised 457.380. Revised 457.380 also requires states to verify citizenship or immigration status in accordance with Medicaid rules at 435.956(a) and to provide individuals with a reasonable opportunity period to verify their citizenship or immigration status in accordance with Medicaid rules at 435.956(g). The reasonable opportunity period must be at least 90 days from when notification of the reasonable opportunity period is received by the individual.

CS18 - Non-Financial – Citizenship



States also have the option to extend the reasonable opportunity period beyond 90 days if the individual is making a good faith effort to resolve any inconsistencies or obtain any necessary documentation.

Effective October 1, 2026, section 2107(e)(1)(R) of the Act, which cross-references section 1903(v)(5) of the Act, as added by section 71109 of the Working Families Tax Cut (WFTC) legislation), restricts, with limited exceptions, federal financial participation (FFP) to states for CHIP to the groups identified below. In addition, individuals in these groups must also be a resident of one of the 50 states, the District of Columbia, or U.S. territory, and meet all other applicable eligibility criteria in the state plan.

- U.S. citizens and U.S. nationals,
- Lawful Permanent Residents (LPRs),
- Cuban/Haitian entrants, and
- Compact of Free Association (COFA) migrants.

We refer to “FFP-eligible noncitizens” to mean LPRs, Cuban/Haitian entrants, and COFA migrants, as described in sections 1903(v)(5)(B)(ii) – (iv) of the Act. Given these changes, effective October 1, 2026, with limited exceptions, FFP will no longer be available for CHIP benefits furnished to qualified noncitizens who are not FFP-eligible noncitizens. For example, FFP will no longer be available for CHIP benefits provided to asylees, refugees, parolees, and victims of trafficking, unless they have another immigration status or category that meets the definition of an FFP-eligible noncitizen.

There are two exceptions to the CHIP FFP limitations described in sections 1903(v)(5) and 2107(e)(1)(R) of the Act: (1) coverage to lawfully residing children and pregnant women in the U.S. under the CHIPRA 214 option (if elected under the state plan), per sections 1903(v)(4) and 2107(e)(1)(Q) of the Act; (2) payments for services for state-designed Health Services Initiatives provided under section 2105(a)(1)(D)(ii) of the Act. Section 71109 of WFTC legislation did not amend 8 U.S.C. § 1613, so the five-year waiting period still applies to certain LPRs, if an exception does not apply.

Verification of Citizenship and Reasonable Opportunity Period

Effective January 1, 2010, section 2105(c) of the Act was amended to apply to separate CHIPs, the same requirements as in Medicaid with respect to required verification of citizenship or nationality, for individuals who have declared themselves to be U.S. citizens or U.S. nationals and who are required to verify their citizenship status. Consistent with 42 CFR 457.320 citizenship and immigration verification must be done in accordance with 457.380(b). States are also required to verify citizenship or immigration status in accordance with Medicaid rules at 435.956(a) and to provide individuals with a reasonable opportunity period to verify their citizenship or immigration status in accordance with Medicaid rules at 435.956(g).

CS18 - Non-Financial – Citizenship



The reasonable opportunity period must be at least 90 days from when notification of the reasonable opportunity period is received by the individual. States also have the option to extend the reasonable opportunity period beyond 90 days if the individual is making a good faith effort to resolve any inconsistencies or obtain any necessary documentation. States may not limit the number of reasonable opportunity periods that an individual may receive once denied eligibility for CHIP due to failure to verify citizenship or satisfactory immigration status consistent with 435.956(b)(4).

Lawfully Residing CHIPRA 214-Option

States also have the option to cover noncitizen pregnant women and children who are lawfully residing in the U.S. This option, referred to as the “CHIPRA 214 option”, is provided at section 2107(e)(1)(Q) of the Act, which cross-references section 1903(v)(4) of the Act, and allows states the opportunity to elect to provide CHIP to lawfully residing pregnant women (including the 60-day postpartum period) and/or children up to age 19. To meet the criteria of lawfully residing and to qualify under this option, an individual must be both lawfully present in the U.S. and a resident of the state and meet all other eligibility requirements in the state plan.

For more information about this state option, including individuals who are considered “lawfully present” and applicable federal financial participation available, see SHO # 10-006 (Medicaid and CHIP Coverage of “Lawfully Residing” Children and Pregnant Women), dated July 1, 2010, at <https://downloads.cms.gov/cmsgov/archived-downloads/smdl/downloads/sho10006.pdf> and SHO # 12-002 (Individuals with Deferred Action for Childhood Arrivals), dated August 28, 2012, at <https://www.medicaid.gov/federal-policy-guidance/downloads/sho-12-002.pdf>. States may not select the option to cover lawfully residing noncitizen pregnant women and children under CHIP if they do not also cover them under their state’s Medicaid program. Additionally, states may not elect to cover pregnant women under this option without also covering children, unless pregnant women are the only population covered in the state’s separate CHIP.

TECHNICAL GUIDANCE

PREREQUISITES:

For states electing to cover lawfully residing children for the first time:

State plan page CS7 (Targeted Low-Income Children) must have been submitted prior to or concurrently with CS18.

Medicaid RU “Citizenship and Non-Citizen Eligibility”, including election of lawfully present children, must have been submitted prior to or on the same day as CS18.

CS18 - Non-Financial – Citizenship



Review Criteria

If either state plan pages CS7 (targeted low-income children) and/or the Medicaid RU “Citizenship and Non-Citizen Eligibility” are not approved, state plan page CS18 cannot be approved.

For states electing to cover lawfully residing pregnant women for the first time:

State plan page CS8 (Targeted Low-Income Pregnant Women) must have been submitted prior to or concurrently with CS18.

Medicaid RU “Citizenship and Non-Citizen Eligibility , including election of lawfully present pregnant women, must have been submitted prior to or on the same day as CS18.

Review Criteria

If either state plan pages CS8 (targeted low-income pregnant women) and/or Medicaid RU “Citizenship and Non-Citizen Eligibility” are not approved, state plan page CS18 cannot be approved.

This state plan page is broken down into the following sections:

- Assurance
- Policy Statement
- Reasonable Opportunity Period
- Lawfully Residing Options

Assurance

State plan page CS18 begins with the state providing assurance that it provides CHIP to citizens and nationals of the United States and FFP-eligible noncitizens who meet all other eligibility requirements in the state plan, including the time period during a reasonable opportunity period pending verification of their U.S. citizenship, U.S. national or satisfactory immigration status.

The state provides this affirmative assurance by checking the assurance box at the top of state plan page CS18.

Review Criteria

The state must check the assurance box or this state plan page cannot be approved.

Policy Statement

This section begins with a statement that supports the assurance above, followed by a listing of the three citizen/noncitizen categories which must be provided CHIP coverage.

Reasonable Opportunity Period

This section begins with a statement that “The reasonable opportunity period begins on and extends 90 days from the date the notice of reasonable opportunity is received by the individual”.

This statement is followed by two Yes/No questions:

- The agency provides for an extension of the reasonable opportunity period if the individual is making a good faith effort to resolve any inconsistencies or obtain any necessary documentation, or the agency needs more time to complete the verification process.
- The agency begins to furnish benefits to otherwise eligible individuals during the reasonable opportunity period on a date earlier than the date the notice is received by the individual.

Review Criteria

The state must select either yes or no to each of the two questions or this state plan page cannot be approved.

If the answer to the second question is yes, the state then indicates the date that benefits are furnished by selecting one of the three options displayed. If “Other” is selected, the state then describes the date used in the space provided.

Review Criteria

***The state must enter a description or this state plan page cannot be approved.
The description should be sufficiently clear, detailed and complete to permit the reviewer to determine that the state’s election meets applicable federal statutory, regulatory and policy requirements.***

Lawfully Residing Options

This section consists of two questions. The first question asks if the state elects the option to provide CHIP coverage to children up to age 19, lawfully residing in the United States, who meet all other eligibility requirements in the state plan.

Review Criteria

The state must select either yes or no or this state plan page cannot be approved.

The state provides assurance that lawfully residing children are also covered under the state's Medicaid program. The state provides this affirmative assurance by checking the box next to the assurance statement. The state then provides assurance that an individual is considered lawfully residing in the United States if they meet state residency requirements and all other eligibility requirements in the state plan. A list of statuses and categories of individuals considered to be lawfully present is also displayed.

Review Criteria

The state must check the assurance box or this state plan page cannot be approved.

The Medicaid state plan must be checked to verify that lawfully residing children are also covered under the state's Medicaid program.

The second question asks if the state elects the option to provide CHIP coverage to pregnant women, lawfully residing in the United States, who meet all other eligibility requirements in the state plan.

Review Criteria

The state must select either yes or no or this state plan page cannot be approved.

The state provides assurance that lawfully residing pregnant women are also covered under the state's Medicaid program. The state provides this affirmative assurance by checking the box next to the assurance statement. The state then provides assurance that an individual is considered lawfully residing in the United States if they meet state residency requirements and all other eligibility requirements in the state plan. A list of statuses and categories of individuals considered to be lawfully present is also displayed.

Review Criteria

The state must check the assurance box or this state plan page cannot be approved.

The Medicaid state plan must be checked to verify that lawfully residing pregnant women are also covered under the state's Medicaid program and the CHIP plan must also be checked to verify that lawfully residing children are also covered under CHIP, unless pregnant women are the only population covered in the state's separate CHIP. If lawfully residing pregnant women are not covered under the state's Medicaid program and/or lawfully residing children are not covered under CHIP, this state plan page cannot be approved.